

On Inconstancy, whether to be admitted in law or not — Tract I, On Inconstancy in Faith, Chapter X On Schismatics: selected loci (Argument and Summary 1–12; nn. 1–12; n. 21; n. 32; n. 36)

Cardinal Francesco Albizzi, Cardinal Priest of the title of St. Praxedes, formerly Assessor of the Holy Inquisition — Amsterdam, at the expense of Jean-Antoine Huguetan, 1683; printed pp. 45–47, 49, 50, 51

Translated 1:1 from the diplomatic transcription. Column breaks [col. b] and marginal paragraph numbers (bold) are kept. Sic-notes follow the text.

BLOCK A — Cap. X, Argumentum and Summarium 1–12 (printed 45)

CHAPTER X.

ARGUMENT. On Schismatics: Who is called a schismatic. Who is disobedient to the Pope. When it is not lawful to obey a schismatic Pope. Whether he can be called a schismatic who withdraws from obedience to his Bishop. Whether there can be schism without heresy. Whether a schismatic is to be received back by the Church, and in what manner he is received. On the penalties of schismatics. Whether the Apostolic Constitutions comprehend the Orientals. Whether the sons of schismatics are deprived of their goods, and rendered incapable of honours and dignities, by reference.

SUMMARY.

1. Who is called a schismatic, and whence the name.
2. In what the unity of the Church consists, and how it is torn.
3. He is called a schismatic who refuses to obey the Supreme Pontiff as Pope, and to acknowledge him as Head of the Church.
4. A schismatic is not only he who withdraws himself from obedience to the Pontiff by direct intention, but also he who does so by deed or by effect.
5. Those who convoke a Council without the authority of the Pope, or continue one lawfully dissolved, are schismatics.
6. A schismatic, in what he differs from one who is disobedient.

7. One disobedient to a Supreme Pontiff hostile and suspect to him, whom nevertheless he believes to be Head of the Church, is not a schismatic.
8. A rebel against the Pope as a temporal Prince is not a schismatic.
9. One who denies subjection to the Pontiff because with probability he doubts his canonical election, whether and when he can be called a schismatic.
10. One who refuses to obey one of two elected Pontiffs while the schism is pending [1], until it be defined by the Church whom one must obey, whether and when he is called a schismatic, and in the following number.
11. One doubtful about the valid election of a Pope who on account of that same doubt has not yet been received by the Church, whether and when he is called a schismatic, and in the following number.

Obedience is not owed to a man as to a Pontiff, nor as being of faith that he is such, until he has been accepted by the whole Church.

1. He is to be believed as of faith the legitimate Pontiff who has been elected as such and received by the universal Church.

And obedience cannot be denied to him without the vice of schism.

BLOCK B — nn. 1–12 (printed 46–47)

1 THIRDLY, there is inconstancy in faith on account of schism. For a schismatic is he who, being inconstant, withdraws from the union of the Church and is separated from it, *D. Thomas* 2. 2. q. 39. art. 1. and there Bañez *in fin.* Abbas Antiquus *in cap. 1. de Schismat. num. 1.* Johannes Andreae *num. 3.* Butrius *num. 4.* Diaz *in prax. crimin. Canon. vers. Schismatici cap. 112.* and there Ignatius Lopez, Albertin. *in rubr. de Hæret. in 6. q. 11. num. 2.* Simancas *de Cathol. tit. 58. nu. 1.* Petrus Gregorius *Syntagma Iuris lib. 33. cap. 11. num. 1.* Sánchez *lib. 2. oper. moral. cap. 36.* Santarelli *de Hæresi cap. 43. dub. 1.* Farinacci *eodem tract. qu. 184. §. 1. num. 3.* and most recently Macedo *de Clauibus Petri qu. præuia art. 3. assert. 3.* P. del Bene *de Offic. S. Inquisitionis par. 2. dubit. 235. sect. 1. num. 1. & sect. 2. nu. 1.*

2 And since the unity of the Church consists in this, that all the faithful, its members, are bound together among themselves in a certain fitting order with the Pontiff, its Head, namely, that in the spiritual actions pertaining to that body, in the doctrine of faith, in the worship of Religion, and in spiritual government, the Head should have a certain [2] primacy over the remaining members, and that these should depend upon it and be subject to it, P. del Bene *loco citato num. 2.* Pueroni *in Bulla Cænæ loco infra allegando num. 232.*

That unity is deservedly torn when an inconstant member of the faithful is unwilling to bear himself as a member of a body of this kind in one or several of the spiritual actions pertaining to this body of the Church, or refuses to be subject to the Pontiff, Sánchez *loco cit. nu. 1.* Santarelli *loco citato nu. 2.* P. del Bene *num. 3.*

3 He, therefore, will be a schismatic who refuses to obey the Supreme Pontiff as he is Pope, and is unwilling to acknowledge him as Head of the Church, *cap. Concilia 17. distin.* Johannes de Ananias in {p. 47} *rubr. de Schismat. num. 7.* Gloss. in *cap. 1. de Schismaticis* in 6. Bonif. de Vitalin. in *Clement. ad nostrum num. 44. de Hæret.* with others through Farinacci *d. qu. 184.* Santarelli and Sánchez *loc. cit. Carena par. 2. de Apostat. & Schismat. tit. 3. §. 10. n. 28.* Bordoni in *Tribun. cap. 7. nu. 7.* P. del Bene *loc. cit. nu. 8.* Pueroni in *Bulla Cænæ cap. 1. num. 228.* Bard. in *Bulla Cruciatæ par. 1. tract. 2. cap. 4. sect. 2. §. 8. num. 104.*

4 Which holds in the case of him who withdraws himself from obedience to the Pontiff not only by direct intention, but even if he does so indirectly, that is, by effect and by deed, Cajetan in *Summ. vers. Schisma, & 2. 2. qu. 39. artic. 1. vers. Ad tertium dubium,* and there Bañez *dub. 1. ad 2. Valencia 2. 2. disp. 3. qu. 15. pun. 1. post tertiam propositionem,* Ugolini *de Censuris Papæ reseruat. 2. par. cap. 1. vers. Necnon Schismaticus §. 1. num. 1. vers. 3.* Suárez *de Censur. disp. 21.* P. del Bene *loc. cit. num. 11. sect. 2. num. 13.* Peter of Ledesma *2. to. Summæ tract. 3. cap. 12. conclus. 3.* Farinacci *dicta qu. 184. num. 20. in fine.*

5 Hence it is deduced that those who convoke a general Council without the authority of the Supreme Pontiff, or lawfully continue one that has been dissolved, are schismatics, Sánchez *loc. cit. nu. 5.* Santarelli *loc. cit. nu. 3. vers. Dico tertio,* P. del Bene *loc. cit. nu. 13.*

6 I said, *he who refuses to obey the Pontiff insofar as he is Pope is a schismatic:* For if someone should not obey the Pope enjoining something, as for instance that he lay down his arms, or restore what belongs to another, he is not properly a schismatic, but disobedient, because although he does not obey him, he nevertheless recognizes him as Head of the Church, Cajetan in *Summ. vers. Excommunicatio num. 7.* Suárez *d. disput. 21. sect. 2. nu. 12.* Azor *to. 1. lib. 8. cap. 20. q. 4.* Ugolini in *Bulla Cænæ, vers. Necnon Schismaticos n. 9.* Sánchez *dicto cap. 36. num. 3.* Santarelli *loc. cit. num. 4.* Laymann *tract. 3. cap. 34. num. 4. vers. Duplex,* Duaro in *Bulla Cænæ lib. 2. can. 1. quæst. 56. num. 16.*

7 Likewise he would not be judged a schismatic who did not obey a Supreme Pontiff hostile or suspect to him, provided that he otherwise believes him to be Head of the Church: so hold all those cited above, to whom I add Duaro *d. quæst. 56. num. 16. in fin.* and Macedo *art. 3. Carena loco cit. num. 30.* Farinacci *d. qu. 184. num. 11.* P. del Bene *num. 6.*

8 Nor he who did not obey the Pope as a temporal Prince, nor render him subjection in a City of the Pontifical temporal dominion, although such a man is a rebel, Cardinal de Lugo *de virtute fidei*

Diuinæ, disp. 25. sect. 3. num. 36. Carena loc. cit. num. 30. Sánchez d. cap. 36. nu. 3. & 4. Farinacci dicta qu. 184. num. 11. P. del Bene num. 9. Pueroni loc. cit. num. 235.

9 Nor will he be a schismatic who denies [col. b] subjection to the Pontiff because with probability he doubts his legitimate election, Cajetan *in Summ. in vers. Schisma, in fin.* Peter of Ledesma *concl. 3. Ugolini eodem §. 1. num. 2. Valencia eadem disp. 3. Sánchez dicto cap. 36. Laymann d. cap. 11. num. 4. vers. Duplex.*

But although this conclusion has been approved by the reckoning of most learned men, it is nevertheless to be understood with a grain of salt.

10 For either we are in a schism on account of the election of two Pontiffs, and then the doubt is lawful as to which of them is to be obeyed, until it has been defined by the Church whom one must obey, and therefore he will not be a schismatic who acknowledges neither of them as Supreme Pontiff: for such a man does not refuse to be subject to the Pontiff, but to this person, whom he thinks not to be Pontiff, Simancas *de Cathol. cap. 56. in fin.* Torquemada *de Ecclesia lib. 4. c. 14. par. 1.* with others through Santarelli *loco citato num. 11. Bordoni tit. de Schismat. qu. 5. num. 8. Pueroni loc. cit. num. 243.*

11 Or we are dealing with a single elected Pope, but immediately upon his election it happens that it is doubted whether he was canonically elected, and on that account he is not received by the Church. And in this case also it must be said that such a man, who together with others doubts about the valid election of the Pope, is not a schismatic, by reason of what Suárez hands down *disput. 10. de Summo Pontif. sect. 5. num. 6.* where he says that until the Pontiff has been accepted by the whole Church, it is not of faith that this man is truly Pontiff, and that he is to be obeyed.

12 Or we are dealing with a Pontiff elected and received by the universal Church; then, since it is not only a probable opinion but of faith that he is the legitimate Pontiff, Pueroni *loc. cit. sub nu. 241. vers. Est siquidem.* it is a crime to withhold obedience from him without the vice of schism, at length Cardinal de Lugo *d. tract. disp. 1. sect. 13. §. 2.*

Indeed, in the two cases mentioned above, one who did not employ diligence in inquiring who is the true Supreme Pontiff would be reputed a schismatic, *cap. quoties cordis p. [3] qu. 1. cap. Schisma 28. qu. 1.* and so teaches the Gloss *in verb. Magis, & in cap. negligentes 23. quæst. 1. Felinus cap. 1. de Hæret. qu. 13. num. 24. & 25. Socinus in cap. Fraternalitatis, de Schismat. n. 11. Torquemada in summ. de Eccles. lib. 4. par. 1. cap. 14. Santarelli d. cap. 43. dub. 1. num. 11. in fine.*

BLOCK C — n. 21 (printed 49)

Since, therefore, schismatics are almost always heretics, and if they are not formally such, they are nonetheless suspect of heresy, *D. Thom. 2. 2. qu. 3. art. 2. ad 3. Cajetan in summ. in ver. Schisma,*

Azor *d. cap. 20. q. 4.* Santarelli *loc. cit. num. 7. in fin.* and among our own writers Menochius *de præsumpt. lib. 5. præsumpt. 6. num. 24.*

21 But if anyone, together with schism, should believe that the Roman Pontiff is not the Head of the Church, nor the Vicar of Christ, he would assuredly be a heretic, Sylvester *versic. Schisma nu. 1.* Alfonso de Castro *aduersus Hæreses lib. 1. cap. 9.* Suárez *loc. cit. num. 12.* with others through Santarelli *loc. cit. nu. 5.* Farinacci *d. q. 184. num. 11.*

BLOCK D — n. 32 (printed 50)

32 Which things hold much more when one man alone should bear himself as Pope, or as Prelate, in some Region, who, although he were a schismatic, or invalidly elected, would nevertheless there be held by common reputation for the true Pope or Prelate; because for the validity [4] of acts common repu-[col. b]tation suffices, *l. Barbarius, ff. de Offic. Prætor.* whose provision holds even in the Pope, as Iason says *in d. l. n. 64. Geminianus conf. 8.* Gregory XV. *dicta decis. 289. num. 4.* Ricciulli *loco citato num. 15.*

BLOCK E — n. 36 (printed 51)

Now into this excommunication there fall not only schismatics who elect another pseudo-pontiff, since these are called schismatics by antonomasia, but also those who, without the election of another Pontiff, separate themselves from obedience to the true Pontiff, Cardinal de Lugo *dicta disput. 24. sect. 3. num. 37. vers. His breuiter, P. Thesaur. loc. cit. vers. Prima excommunicatio.*

Nay more, Cardinal de Lugo adds that he believes there are comprehended also those who, cunningly trying to veil their malice, say that they do not deny obedience to the Apostolic See, but to this person for particular reasons, while nevertheless they will afterwards render obedience to his Successor: and that for this reason those words were added: *Who withdraw themselves from obedience to us and to any Pontiff for the time being.*

Sic-notes

1. Block A, summarium 10 (PDF 57, printed 45): printed *pendente Schisma*; read *pendente Schismate* (ablative absolute). Verified at high magnification; the word ends in a plain *a*, with no tail or macron.
2. Block B, n. 2 (PDF 58, printed 46): printed *quēdam* with a macron over the *e*. Not a misprint but a nasal-suspension abbreviation; expand *quendam* (agreeing with *Principatum*, masculine). Translated as “a certain” qualifying “primacy”.

3. Block B, after n. 12 (PDF 59, printed 47): printed *cap. quoties cordis p. qu. 1*. The *p* stands where a figure is expected, on the pattern of the following *cap. Schisma 28. qu. 1*. Most likely a turned or broken numeral (9?). Left in the citation exactly as printed.
4. Block D, n. 32 (PDF 62, printed 50): printed *validitatē* with a macron over the final *e*; expand *validitatem*. Translated as “the validity”, governed by “for”.

Closing note

Citation strings are left in Latin and in italic exactly as transcribed, since their abbreviations are locus-identifiers rather than prose; only the author names standing before them are anglicized where a standard English form exists (Cajetan, Suárez, Sánchez, Bañez, Torquemada, Peter of Ledesma, Johannes Andreae, and so forth), while names I cannot render into a settled English form (Bard., Albertin., Bonif. de Vitalin., P. Thesaur.) keep the printed abbreviation. The two italicized passages that are quotation rather than citation are translated and kept in italic: Albizzi’s self-quotation in n. 6 and the clause of the Bulla Coenae at the end of Block E, where the transcript’s *cuiusuis Pontificis* is rendered “any Pontiff for the time being”. Technical terms are held to one English equivalent throughout, so that *Schismaticus* is always “schismatic”, *inobediens* always “disobedient”, *Rebellis* always “rebel”, and *de fide* always “of faith”, even where a looser English word would read more smoothly.